

Court No. - 3

Case :- WRIT - C No. - 23908 of 2016

Petitioner :- Rakesh Kumar

Respondent :- State Of U.P. And 2 Ors.

Counsel for Petitioner :- Mumtaz Ali, Shad Khan

Counsel for Respondent :- C.S.C., Nripendra Mishra

Hon'ble Krishna Murari, J.

Hon'ble Prashant Kumar, J.

Heard learned counsel for the petitioner and Sri S.K. Yadav appearing for respondent nos.1 & 2.

Petitioner has approached this Court challenging the proceedings initiated by the respondent-Corporation for recovery of its outstanding dues. Petitioner challenges the correctness of the bill for which recovery has been initiated.

Clause 6.5 (b) of the U.P. Electricity Supply Code, 2005 (for short the Code) provides for making a complaint before the competent authority if the consumer disputes the accuracy of the bill.

Since the disputed questions of fact are involved and the petitioner has a remedy, this writ petition stands disposed of with the liberty to the petitioner to make an appropriate complaint before the competent authority in accordance with the provisions of clause 6.5 (b) of the Code within a period of one week from today with the further direction to the authority concerned to consider and pass appropriate orders on the complaint so made in accordance with law within a further period of two weeks of the making of the complaint.

For a period of four weeks or till the disposal of the complaint, as directed aforesaid, whichever is earlier, recovery proceedings initiated against the petitioner shall remain in abeyance and shall abide by the orders to be passed by the authority concerned.

It is further provided that after depositing the amount by the petitioner, the electricity connection shall be restored forthwith.

Order Date :- 24.5.2016

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